

Court No. - 40

Case :- WRIT - C No. - 36889 of 2022

Petitioner :- Vinod Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shiv Poojan, Anil Kumar

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Request has been made for adjournment on behalf of Sri Anil Kumar, learned counsel for the petitioner.

Put up this matter as fresh on 16.1.2023.

Order Date :- 2.1.2023

Dev/-

Court No. - 21

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Petitioner :- Vinod Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shiv Poojan, Anil Kumar

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

This is a patent case of abuse of power. The order is in a printed proforma meant for passing a provisional assessment order. However, at the top thereof, it is mentioned that it is a final assessment order. Exfacie, there is no application of mind.

Connect with Writ-C No.37137 of 2022 and list alongwith it as a fresh case on 18.01.2023.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 16.1.2023

SL

Court No. - 21

Case :- WRIT - C No. - 36889 of 2022

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Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shiv Poojan, Anil Kumar

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The petitioner has called in question recovery notice dated 14.9.2022 issued by respondent no. 2 in a case of theft of electricity.

On 16.1.2023, the following order was passed:-

"This is a patent case of abuse of power. The order is in a printed proforma meant for passing a provisional assessment order. However, at the top thereof, it is mentioned that it is a final assessment order. Exfacie, there is no application of mind.

Connect with Writ-C No.37137 of 2022 and list alongwith it as a fresh case on 18.01.2023."

On matter being taken up today an affidavit has been filed by the Executive Officer, Electricity Urban Distribution Div-XI, Varanasi. In paragraph no. 5 thereof, it is stated that the recovery proceeding and the assessment order will be withdrawn and the respondents will issue fresh provisional assessment order and thereafter conclude the proceedings strictly in consonance with the procedure prescribed under the Electricity Supply Code, 2005.

Having regard to the said stand, we dispose of the writ petition in terms thereof.

Order Date :- 18.1.2023

VMA

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)